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File No.: EXP202300617

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 14, 2022, a complaint was filed with registration number REGAGE22e00024354543 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that, together with a third party, they purchased a segregated path from a parent parcel, which borders the parcels of both the complainant and said third party, and that subsequently, said third party sold their property without referencing the purchased path and that the parent parcel from which the segregated path originates became the property of the heirs of the owner from whom the segregated part was acquired.

It is noted that the complained party has installed a surveillance camera on the segregated path, without the complainant's authorization, placing an informative sign indicating a monitored area.

The complainant provides a cadastral plan, a contract for the acquisition of the segregated path, a sales contract of the third party with whom the path was acquired by the complainant, images of a camera on a post, and the sign indicating the monitored area.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was returned as "absent"; the forwarding was reiterated by the same means, and notification was made on 26/08/2022.

On 25/10/2022, a response was received at this Agency indicating that, regarding the ownership of the disputed path, they have always been governed by Private Law, with the registration of the same in the Property Registry being voluntary.

To prove the legitimacy to install a surveillance camera, they provide a contract signed on 29/06/2004 by the three owners of the path at the entrance where the camera has been placed, signed even by the complainant, which indicates who the owners in full ownership are.

According to the contract, a right of use has been established over the mentioned path, in favor of possible new users of it.

Although the document does not exactly prove ownership, it does record an informal community that the co-owners created, with the agreement and signature of the complainant, to address common security and access needs for the properties.

On page 1 of the 2004 contract, the three owners in full ownership of the path are mentioned: B.B.B., C.C.C., and D.D.D.

On 14/10/2004, the complained party acquired the property of C.C.C., as stated in the document executed before a notary, of which an excerpt is provided, specifying that they sell to the complained party "the entirety of the property," "free of charges except for the easement of passage."

They also provide a document signed by both the complained party and D.D.D., co-owner, whereby they jointly decide to install a surveillance camera located at the entrance of the path, for security reasons and in response to acts of vandalism.

THIRD: On September 14, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, under which:

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"1. When personal data relating to an interested party is obtained, the data controller shall provide the interested party with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests of the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the interested party, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the interested party, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the interested party is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the anticipated consequences of such processing for the interested party.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, they shall provide the interested party, prior to such further processing, information about that other purpose and any other relevant information pursuant to paragraph 2.

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The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the interested party already has the information."

III

Article 22.1 of the LOPDGDD

"Natural or legal persons, public or private, may carry out the processing of images through camera or video systems for the purpose of ensuring the safety of persons and property, as well as their facilities."

IV

Article 22.4 of the LOPDGDD

The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device.

In any case, the data controller must keep the information referred to in the aforementioned regulation available to the affected parties.

V

Article 6.1 of the GDPR

Processing shall be lawful only if at least one of the following conditions is met:

- a) the interested party has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the interested party is a party or for the implementation at the request of the interested party of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the interested party or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the interested party which require the protection of personal data, in particular when the interested party is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

VI

Conclusion

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Once the arguments and evidence provided have been examined, it can be concluded that the reported system complies with current legality, as the documentation in the file demonstrates that the respondent party is a co-owner of the path where the camera has been installed, which also has the consent of another co-owner, with the claimant being the only one in disagreement, that the installation of the camera is properly signposted, and that the reasons for its installation fit within the aforementioned Article 22.1 of the LOPDGDD.

Therefore, based on the indications in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data

Protection.

Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-091222

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